

Court No. - 39

Case :- WRIT - C No. - 14619 of 2024

Petitioner :- Kalicharan Yadav

Respondent :- U.P. Electricity Regulatory Commission Lucknow
Through Its Secretary And Another

Counsel for Petitioner :- Arun Mishra, Vijay Pratap Singh

Counsel for Respondent :- Ajay Singh, Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Donadi Ramesh, J.

1. Heard Shri Arun Mishra, learned counsel for the petitioner and Shri Nitesh Patel, holding brief of Shri Udit Chandra, learned counsel for the Regulatory Commission and Shri Shad Azam, holding brief of Shri Ajay Singh, learned counsel for the respondent.

2. Present petition has been filed for the following relief:-

*"(i) Issue a writ, order or direction in the nature of Mandamus commanding respondent No.1 to conclude proceeding of section 142 of Electricity Act, 2003 filed by petitioner (Annexure-4) against respondent No.3 within a given time frame for violating mandates of **Electricity Act, 2003 & of U.P. Electricity Supply Code, 2005.**"*

3. As to the facts giving rise to the prayer, arising from inspection conducted on 14.08.2023, provisional assessment appears to have been made in the case of the petitioner on 14.08.2023 in terms of Annexure-6.3(B)(II). According to the respondents final assessment order has also been passed on 05.09.2023. Copy of the same is annexed as Annexure-2 to the writ petition. However, perusal of the same makes it clear that same is only a show cause notice and not a final assessment order. At the same time, according to the petitioner though he received such notice, he has not objected to the same. As to the reason learned counsel for the

petitioner states that the petitioner is not obligated to reply to the assessment notice. He relies on the complaint made to the Commission.

4. Relying on Section 142 read with Section 146 of the Electricity Act, 2003, according to the learned counsel for the petitioner the petitioner has availed his statutory remedy by filing complaint before the U.P. Electricity Regulatory Commission (hereinafter referred to as the Commission). Perusal of that complaint (Annexure-4 to the writ petition) reveals that the petitioner has sought the following prayer before the Commission:-

"(i) Issue direction for prosecution U/s 57(2) of Electricity Act, 2003 against respondent for deliberately failing to meet the standards specified.

(ii) Issue direction for compensation of Rs.1,00,000/- as compensation towards mental agony caused to petitioner."

5. On merits, learned counsel for the petitioner submits that the petitioner is covered under Annexure 6.3(B)(1) to the U.P. Electricity Code, 2005. The respondent- Executive Engineer had misconducted himself and had overlooked the report of the Sub-Divisional Officer. Therefore, he is liable to be prosecuted and further penalty is liable to be imposed. According to him, the jurisdiction to lodge the prosecution and impose the penalty rests on the Commission.

6. Having heard learned counsel for the parties and perused the record, we find no good ground to issue the mandamus prayed for. As discussed above, the final assessment proceedings were initiated by notice dated 05.09.2023. Learned counsel for the respondents could not establish that those proceedings have been concluded. On its part the petitioner has not filed any reply thereto as it has been stated by the learned counsel for the petitioner that the petitioner was not obligated to furnish such reply, in view of his complaint made to the Commission. We find the stand taken by

learned counsel for the petitioner to be wholly untenable and mis-conceived in law and also on facts. Even if the petitioner was right in his submission that he is liable to be treated under Section 6.3(B)(1) of the U.P. Electricity Code, 2005, it would remain a fact pleading to be raised before the authority who may have dealt with it to pass a reasoned order.

7. Therefore, purely in the interest of justice we allow the petitioner one last opportunity to abide by the notice dated 05.09.2023 and furnish his written replies raising all objections as he may be advised. Such compliance may be made within a period of three weeks and not later.

8. Subject to such compliance made, the assessment proceedings may be finalized by reasoned and speaking order within a further period of two weeks therefrom.

9. As to the complaint lodged by the petitioner before the Commission, the same is wholly premature and untenable. No direction is required to be issued with respect to the same as those are mis-conceived proceedings. The writ petition is thus **disposed of**.

Order Date :- 3.5.2024

A Gautam

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(Donadi Ramesh,J.) (S.D. Singh,J.)